

Court No. - 37

Case :- WRIT - C No. - 14013 of 2012

Petitioner :- Devi Lal @ Tutti Lal

Respondent :- State Of U.P. Thru Special Secy. And Others

Petitioner Counsel :- Manish Chandra Tiwari

Respondent Counsel :- C.S.C.,Anubhav Shukla

Hon'ble Sunil Ambwani,J.

Hon'ble Pankaj Naqvi,J.

Shri Anubhav Shukla appears for respondent no.4. He is not present in the Court. He is allowed time upto 28th March, 2012 to seek instructions as to whether any provisional assessment was made and served upon the petitioner before making final assessment and initiating recovery. Put up on 28th March, 2012.

Order Date :- 22.3.2012

SP/

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Hon'ble Sunil Ambwani, J.

Hon'ble Pankaj Naqvi, J.

We have heard Shri Manish Chandra Tiwari, learned counsel appearing for the petitioner. Learned Standing Counsel appears for the State respondents. Shri Anubhav Shukla appears for the electricity department.

A case for theft of electricity under Section 135 of the Electricity Act was reported on which a report was lodged against the petitioner as Case Crime No. 22 to 26/2011, P.S. Kaundhiyara, District Allahabad. The petitioner did not get the theft case compounded on the day, when the inspection was made. He filed a Criminal Misc. Writ Petition No. 4584 of 2010 in which directions were issued for deposit of the compounded amount as a condition for stay of the arrest.

It is stated that the petitioner deposited Rs. 20, 000/-, in compliance with the order dated 26.3.2010 in Criminal Misc. Writ Petition No. 4584 of 2010.

The petitioner has now challenged the recovery of Rs. 82, 802/- assessed as electricity dues for unauthorised consumption in accordance with the statutory method of calculation provided in the U.P. Electricity Supply Code, 2005.

Shri Manish Chandra Tiwari, learned counsel appearing for the petitioner states that the order dated 29.4.2010 asking him to deposit Rs. 82, 802/- is by way of provisional assessment in respect to which no final assessment has been made, failing which no recovery can be initiated against him.

Shri Anubhav Shukla, learned counsel appearing for the electricity department was asked to seek instructions in the matter. He has produced the checking report and the order dated 29.4.2010 by which the demand has been raised. The order dated 29.4.2010 passed by the Executive Engineer does not show that it is a final order of assessment. The provisional assessment has been made

under Section 126 (1) of the Electricity Act, 2003, which has to be served upon the consumer or the person, who is found to have unauthorisedly consumed the electricity. Section 126 of the Electricity Act, 2003 gives a right to such person to make objections to the assessment. If any objections are filed, the Executive Engineer is required to pass a final order against which the appeal lies under Section 127 of the Act. Even if no objections are filed the Executive Engineer is required to pass a final order of assessment after satisfying himself from record that the provisional assessment order has been served on such person.

In the present case, even after seeking instructions, learned counsel appearing for the electricity department has not been able to produce the final assessment order.

We thus **dispose of** the writ petition with directions that the recovery against the petitioner vide citation dated 1.3.2012 shall be kept in abeyance. If the petitioner files the objection within a week to the provisional assessment, the same will be decided within a month. If the objection is allowed, the recovery will be modified accordingly. If it has been rejected, the petitioner has a right to file an appeal under Section 127 of the Electricity Act.

Order Date :- 28.3.2012
RKP